

FLAVIA AGNES
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Q. DOES INDIA NEED A UNIFORM CIVIL CODE? IF SO, WHY?

PINKY ANAND: It is a long-overdue move in the right direction—a uniform civil code is critical to balance the preservation of religious and cultural diversity with a consistent legal framework that safeguards everyone's fundamental rights. The UCC will streamline the implementation of the rule of law over society as a cohesive whole, giving all citizens the same rights and remedies in law. At its core, this is informed by India's commitment to human dignity, legality and the right of individuals to autonomy. The cohesiveness of a society depends on how the rule of law is imagined and how its ends are attained: it's a normative need. The hierarchy that gives precedence to religious laws and customs over statutory law renders the dispersion of justice in India fundamentally undemocratic. Personal laws perpetuate colonial edicts that leave citizens—especially women—without remedies to acts that infringe on their natural rights. Dogmatic provisions in personal laws that violate the fundamental rights of women preserve a perennial cycle of patriarchal and religious oppression. This is antithetical to the morality of our Constitution. Elimination of discriminatory, oppressive practices that endanger the rights of women, such as polygamy and unequal inheritance, is of paramount importance. The harmonisation of laws—a need whose impetus flows from the Directive Principles, and which the Supreme Court has often exhorted us to strive for—will proliferate a system of dignified treatment of women and marginalised communities.

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HASINA KHAN: For the last 40 years, women's movements have raised their voice against gender-discriminatory laws and codes and have been demanding change. Many women's groups have approached the State, and in many individual cases women have also approached the Supreme Court on issues such as child marriage, triple talaq, divorce, maintenance, property and inheritance rights. What India needs is gender-just and egalitarian laws that will also address Article 25 of the Constitution (which guarantees freedom of religion). Whether a UCC will address all the inequalities in India and also its diversity remains a question: it would make sense only if the purpose is not to pursue 'uniformity' but rather to bring changes in regressive practices, strengthen social security and provide protection. It would be more appropriate to call it 'gender-just laws' or an 'egalitarian civil code' rather than emphasising on uniformity.

COLIN GONSALVES: On principle, it's a perfectly good idea. But principles alone don't matter in this case. The devil is in the details. The makers of our Constitution envisioned absolute equality between men and women, irrespective of religion. The BJP's UCC has nothing to do with that vision. Everyone is talking about a Uniform Civil Code, but nobody has any idea about its draft, even within the BJP. What's the point of raising the issue when you don't even have a draft? I challenge the BJP to produce a draft that makes its stand categorical on the Hindu Undivided Family (HUF), which is peculiar to the Hindus. If there is a UCC, the benefits given to HUF, now available only to Hindus, must be either abolished or extended to all communities. That's why the BJP is coy about publishing the draft as they know Hindu families will oppose this: the pitfalls spring up on that single issue.

SAUMYA SAXENA: In the 21st Law Commission, we held that it was "neither necessary nor